

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Bench:

Mr. Justice Athar Minallah
Mr. Justice Irfan Saadat Khan
Mr. Justice Malik Shahzad Ahmad Khan

CRIMINAL APPEAL NO.590 OF 2017

*(Against judgment dated 30.06.2014 of the
Lahore High Court, Lahore passed in Murder
Reference No.562 of 2002)*

Anwar Keneth ... Appellant

Versus

The State ... Respondent

For the appellant (s): Mr. Abdul Hameed Rana, ASC
(via video-link from Lahore)

For the State: Mr. Tariq Siddique, Addl.PG Punjab

For PW-1: Mr. Ghulam Mustafa Ch., ASC

On Court notice: Dr. Saqib Maraj Bajwa, ED PIMH
Dr. Ali Madeeh Hashmi, Professor of Physiatry
(via video-link from Lahore)

Date of hearing: 24.09.2025

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JUDGMENT

Athar Minallah, J.-The **appellant**, Anwar Keneth, son of Veera Masih, had challenged his conviction and sentence of death which was confirmed by the High Court vide impugned judgment dated 30.06.2014. His jail petition, (JP 322/2014), was converted into an appeal pursuant to grant of leave by this Court vide order dated 15.12.2017. This Court had appointed a counsel at state expense to represent the appellant but he had declined. The counsel was later nominated by the Pakistan Bar Council who assisted us on behalf of the appellant.

3. Pursuant to a complaint filed by Inspector Nasrullah Khan Niazi, SHO Police Station Gawalmandi, Lahore crime report No.151/2001,

dated 25.09.2001, was registered for commission of the alleged offence under section 295-C of the Pakistan Penal Code, 1868 ('**PPC**'). The complaint was regarding a letter dated 27.08.2001 which had been addressed to Haji Mehmood Zafar (PW-2). The entire letter was reproduced in the crime report. The appellant was arrested in September 2001 and after completion of investigation, a report under section 173 of the Criminal Procedure Code, 1898 ('**Cr.P.C**'). was filed before the competent court. The appellant had pleaded guilty to the charge framed against him on 28-06-2002. In the statement recorded under section 342 of the Cr.P.C the appellant had admitted writing the letter dated 27-08-2001. The trial court, upon conclusion of trial, convicted the appellant for commission of the alleged offence under section 295-C of the PPC and he was sentenced to death. He was also ordered to pay a fine of rupees five hundred thousand and in case of default to be recovered as arrears of land revenue. The High Court answered the reference in the affirmative and, therefore, the sentence of death was confirmed and consequently the appeal was accordingly dismissed vide impugned judgment dated 30.06.2014.

4. The jail petition sent through the concerned Superintendent of prison was received by this Court in 2014 and leave was granted vide order dated 15.12.2017. The offending letter was sent to the Islamic Ideology Council ('**IIC**') pursuant to this Court's order, dated 12-03-2024. An interim report, dated 13.09.2024, was received and, after examining the same, the Punjab Institute of Mental Health, Lahore ('**PIMH**') was directed, vide order dated 07-10-2024, to constitute a Medical Board and submit a report after examining the appellant. The Medical Officer of the Central Jail, Lahore vide letter dated 01.01.2025, which was addressed to the Inspector General of Prisons, Punjab, Lahore had informed that

the appellant had been examined by the medical specialists at PIMH and was diagnosed as suffering from “**Bipolar Affective Disorder**” and that the mental disorder was in the 'Hypomaniac' stage. The Medical Board had advised admission of the appellant in PIMH for treatment. The appellant was admitted in the PIMH on 31.12.2024. The Chief Consultant Psychiatrist, PIMH, had reported, vide letter dated 21-02-2025, that on the advice of the Board of Certification the appellant was again admitted since he had developed a transient stroke requiring round the clock monitoring by medical specialists. This Court, vide order dated 11.2.2025, had directed the Executive Director PIMH to constitute a Medical Board in the light of the principles enunciated by this Court in Safia Bano’s case¹. The Board was duly constituted and, after detailed examination, the findings were sent to this Court vide letter dated 30.05.2025. The diagnosis and opinion of Medical Board are as follows:

“SUBJECT: DETAILED REPORT OF CONFIRMED CONDEMNED PRISONER ANWAR KENETH S/O VEERA MASIH, CRIMINAL APPEAL NO.590 OF 2017 (ANWAR KENETH VS THE STATE)”

The Confirmed Condemned Prisoner Anwar Keneth s/o Veera Masih was referred to PIMH for the first time in November 2024 for mental state examination. At that time, he was assessed in detail, multiple times and was finally presented in the meeting of the Board of Certification in December, 2024 and was found to be suffering from Bipolar Affective Disorder and was advised admission to Punjab Institute of Mental Health (PIMH) for treatment.

Bipolar Affective Illness, a disorder of mood is a mental disorder that causes extreme mood changes, including emotional highs (mania or hypomania) and lows (depression). During manic/hypomania phases, a person may feel overly energetic, talkative, or have unrealistic beliefs. In depressive phases, they may feel very sad, tired, or lose interest in daily activities. The illness follows a **recurrent and episodic course**, meaning symptoms come and go, often in cycles. It can be **genetic** and is linked to **chemical imbalances in the brain**, stress, or major life

¹ Safia Bano v. Home Department, Government of Punjab and others (PLD 2021 SC 488)

events. With proper **treatment and medication**, most people can manage symptoms and lead stable lives.

Anwar Keneth when seen in November/December 2024 i.e. before the initiation of treatment was in the hypomanic phase. He showed the following symptoms/psychopathology.

Mood: - His mood was elated.

Form of thoughts: - Flight of ideas, characterized by racing thoughts and rapid shifts from one topic to another, was evident in his speech, where abrupt changes in topic could be readily appreciated.

Auditory hallucinations (Perceptual disturbance): - He could hear the voice of Jesus Christ talking to him, guiding him.

Delusions: - Firm, false beliefs were held by him at that time. Some of these were as follows:

I. Grandiose delusions: - He believed that he is the chosen one of God. He also believed that he would become the king of Israel.

II. Paranoid delusions: - He held the belief that he is being trapped by Nawaz Sharif, who is against him

Cognitive Functions: - Patient of Bipolar Affective Disorder usually do not have any cognitive disturbance. Anwar Keneth's cognitive functions including memory, orientation and intellect were normal.

Insight: - The awareness that he is suffering from some mental/Psychiatric disorder was absent.

Judgment: - Impaired (based on delusional thinking)

It is important to mention that Bipolar Affective Disorder is a treatable illness in which the patient, if given the appropriate medicines in appropriate dosage, improves significantly and may even become symptom-free. However, Anwar Keneth was never seen by a psychiatrist before and did not receive any kind of psychiatric treatment, to our knowledge. When in December 2024, he was admitted to PIMH and treatment was started, he showed good response to treatment and his symptoms gradually improved. In April 2025 Anwar Keneth was presented before the Board of Certification for the second time and had improved significantly. He was seen for the third time by the Board of Certification on 30.05.2025. At this time, he was stable with medication and following is his most recent mental state examination.

Mood: - No elation was seen.

Form of Thoughts (Flight of ideas): - Flight of ideas were not demonstrated on mental state examination.

Auditory hallucinations (Perceptual disturbance): - They were absent and how he does not hear Jesus Christ talking to him.

Delusions: - All the false beliefs that he previously held, including the grandiose delusions, were not seen this time.

Insight: - Insight was present, and he was aware that he was suffering from some psychiatric illness due to which he used to have the previous false beliefs.

Judgment: - Intact**Opinion:**

In summary Anwar Keneth's hypomanic phase of Bipolar Affective Disorder illness has settled down with treatment including medication. However, he needs to continue his medication and maintain good follow-up to prevent relapses. Moreover, after careful consideration of the accused's clinical history and a thorough retrospective examination of the available records, it is likely that the accused was suffering from significant mental disorder at the time of the alleged offense. The evidence suggests that he may have been experiencing delusional beliefs of grandiosity and was possibly acting under the influence of auditory hallucinations. These symptoms could have contributed to his actions. This assessment is further supported by the content of the letter he wrote during that period, which appears to reflect his disturbed mental state.

5. The Medical Board was headed by the Director General, Health Services, Government of the Punjab and included seven medical specialists in the field of psychiatry and neurology from reputable institutions. The Executive Director of PIMH and a senior professor of psychiatry of the King Edward Medical University, Lahore had appeared on 07-05-2025 and had explained in detail the nature of the diagnosis and its impact in the context of the offending letter. A plain reading of the letter clearly manifests the symptoms of the diagnosed mental disorder and the opinion of the Medical Board has confirmed that it could not be ruled out that the appellant was suffering from the mental disorder with which he was diagnosed by the Medical Board. The question, therefore, for our consideration is whether the opinion and diagnosis of the Medical Board and the facts and circumstances of this case raises doubt regarding the *mens rea* and whether its absence would entitle the appellant to be acquitted from the charge by extending the benefit of

doubt. It is noted that the opinion has been rendered by a Medical Board which was constituted in consonance with the enunciation of law by this Court in the case of Safia Bano (*supra*).

5. We have heard the learned counsel who was appointed at state expense and the counsel who had filed his power of attorney to argue the matter on behalf of one of the witnesses of this case i.e. Maulana Naeem Akhtar Adnan (PW-2). We also heard the learned Additional Prosecutor General, Punjab at great length. The record was perused with their able assistance.

6. The crime report in this case was entered in the prescribed book required to be kept for the purposes of section 154 of the Cr.P.C pursuant to a complaint filed by Inspector Nasrullah Khan Niazi, who then was the In charge of Police Station Gawalmandi, Lahore. The latter did not enter the witness box and the letter was neither addressed nor was a copy endorsed to him.

7. The charge against the appellant was to the extent of letters dated 27.08.2001 and 14.09.2001. The entire contents of the letter dated 27.08.2001 was reproduced in the crime report. It was addressed to Haji Mahmood Zafar (PW-2) and there is nothing on record to establish that it was posted to the persons to whom it had been copied. The prosecution had produced only two witnesses, Maulana Naeem Akhtar Adnan (PW-1) and Haji Mahmood Zafar (PW-2). The investigating officer of this case also did not enter the witness box. It appears that the prosecution, besides producing two witnesses, had made no further attempt to prove its case against the appellant. It also appears that the prosecution was content with the reply of the appellant in response to the show cause notice under section 243 of the Cr.P.C. The appellant professes the religion of

Christianity. The letters were addressed to Haji Mohammad Zafar (PW-2) and it is obvious from the contents that he was attempting to propagate and profess his faith. The said religion is obviously distinct from the beliefs held by a person professing the religion of Islam. In his letter the appellant had asserted that he was not saying things on his own, rather he was informing 'all those things which the Lord Jesus had spoken and were also written in the Holy Bible'. He gave references to various chapters and verses from the Holy Bible and asserted that he was 'one of the two witnesses' mentioned therein. He had claimed that 'he belonged to Juda tribe and a descendant of King David'. He had further claimed that he would be the 'King of Israel and rule the whole world'. He asserted that one of the two witnesses would be resurrected. He also asserted that the 'great Lord of Heavens will establish the Kingdom in Israel'. He referred to 'brother Mullah Ummer, President of republic of Afghanistan as the head of his father Benjamin's house'. In his letter he described the crucifixion of Lord Jesus. He then attempted to build an argument that his faith was the true religion. However, while professing his own religious beliefs to the person to whom the letter was addressed he also asserted that the beliefs of the latter were not true. The entire letter unambiguously shows that its author was suffering from some mental disorder. The conduct of the appellant during the investigation and the trial was not that of a normal and sane person. The contents of the letter reflected signs of grandeur, hallucination and delusional flight of ideas. Though the abnormality was obvious from the conduct and contents of the letter but neither the prosecution nor the trial court had the appellant medically examined by specialists in the field of psychiatry. The abovementioned opinion of the Medical Board, consisting of eight medical specialists in the field of psychiatry, has confirmed that the appellant suffered from a serious mental disorder and that it was diagnosed for the

first time when he was examined in December 2024. The opinion has also confirmed that the contents of the letter reflects the typical symptoms of the diagnosed mental disorder.

8. The offence described under section 295-C of the PPC is penal and attracts the punishment of death. It is a settled principle of criminal administration of justice that the prosecution has to prove its case against an accused beyond reasonable doubt and it is not absolved of this duty if the accused has been unsuccessful in proving a plea in his/her defense. It is also a settled principle that when an accused raises a specific plea permissible under the law then the onus to prove that plea is on the accused. However, while proving such plea, an accused may benefit from any material, oral or documentary, produced/relied upon by the prosecution. In this case the appellant was not aware that his actions were influenced by the mental disorder from which he was suffering. The culpability of the offence for which the appellant was charged requires establishing the *actus rea* and *mens rea*. The former refers to the physical or external factor of an offence leading to the act while the latter to the mental component or the criminal intent. The opinion of the Medical Board has raised a serious doubt regarding the existence of criminal intent or *mens rea*. The IIC, in its interim report, has rightly observed that the followers of all religions enjoy the right to profess, practice and propagate their respective beliefs but the exercise of such right is subject to law. While professing, practicing and propagating the religious beliefs encroachment cannot be made on the beliefs of others nor can the permissible limits be transgressed. The appellant is more than seventy-four years old and has spent around twenty-three years in prison, most of which was in the death cell. The opinion of the Medical Board raises doubt regarding the culpability of the appellant and its benefit cannot be

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withheld in the facts and circumstances of this case. The benefit of doubt is, therefore, extended in favor of the appellant and consequently he is acquitted from the charge framed against him. The judgments of the High Court and the trial court dated 30.06.2014 and 18.07.2002, respectively, are set-aside. In case the appellant is not required to be incarcerated in any other matter, he shall forthwith be released. We expect that the Executive Director of PIMH shall ensure that the medical treatment of the appellant is not discontinued.

Judge

Judge

Judge

Announced in Open Court on 08.10.2025
At Islamabad

Judge

APPROVED FOR REPORTING
(Aamir Sheikh / Habib, Law Clerk)